

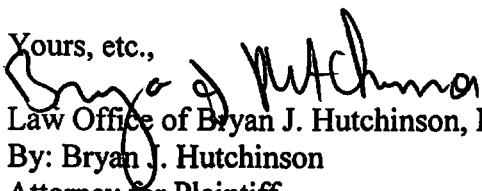
**SUPREME COURT OF THE STATE OF NEW YORK  
COUNTY OF BRONX****X INDEX NO.:****ASHER NEWTON EMPTY,****PLAINTIFF,****v.****SUMMONS****CITY OF NEW YORK, PO THEOS,  
PO JOHN DOE I, PO JOHN  
DOE II, AND PO JOHN DOE III,  
IN THEIR INDIVIDUAL  
AND OFFICIAL CAPACITY,****DEFENDANTS.****X TRIAL BY JURY DEMANDED****TO THE ABOVE-NAMED DEFENDANT(S):**

**YOU ARE HEREBY SUMMONED** to appear in this action by serving a Notice of Appearance on plaintiff's attorneys within 20 days after service of this Summons, exclusive of the day of service, or within 30 days after service is complete if this Summons is not personally delivered to you within the State of New York. In case of your failure to answer, Judgment will be taken against you by default for the relief demanded in the Complaint.

**The basis of venue is the plaintiff's residence. Plaintiff resides at 1651 Hammersley Avenue, Bronx, New York.**

Dated: January 10, 2020  
Bronx, New York

Yours, etc.,

  
Law Office of Bryan J. Hutchinson, PLLC

By: Bryan J. Hutchinson

Attorney for Plaintiff

1443 East Gun Hill Road, Suite 2

Bronx, New York 10469

Tel: (718) 671-0900

**To Defendants:**

James E. Johnson, Esq.  
Corporation Counsel  
New York City Law Department  
100 Church Street  
New York, New York 10007

**SUPREME COURT OF THE STATE OF NEW YORK  
COUNTY OF BRONX**

-----X INDEX NO.:

**ASHER NEWTON EMPTY,****PLAINTIFF,****v.****VERIFIED COMPLAINT****CITY OF NEW YORK, PO THEOS,  
PO JOHN DOE I, PO JOHN DOE II,  
AND PO JOHN DOE III, IN THEIR  
INDIVIDUAL AND OFFICIAL CAPACITY,  
DEFENDANTS.**

-----X

Plaintiff, Asher Newton Empty, as and for his complaint, respectfully allege as follows:

1. At all times herein mentioned, plaintiff, Asher Newton Empty was a resident of the County of Bronx, City and State of New York.
2. At all times herein mentioned, defendants PO Theos, PO John Doe I, PO John Doe II, and PO John Doe III were police officers employed by defendant City of New York Police Department.
3. At all times herein mentioned, defendant the City of New York was and is a municipal corporation duly organized and existing under the laws of the State of New York.
4. At all times herein mentioned, defendant the City of New York maintained and was responsible for overseeing, supervising and regulating all conduct engaged in and undertaken by the City of New York Police Department.
5. At all times herein mentioned, defendant the City of New York maintained and was responsible for overseeing, supervising and regulating all conduct engaged in by the City of New York Police Department personnel while such personnel were engaged in police business, including that of defendants P.O. Theos, PO John Doe I, PO John Doe II, and PO John Doe III.
6. Defendant City of New York is a Municipal Corporation duly incorporated and existing pursuant to the laws of the State of New York, pursuant to sec. 431 of its Charter. The City of New York has

established and maintains a Department of Police as a constituent department or agency of the defendant.

7. Defendants PO Theos, PO John Doe I, PO John Doe II and PO John Doe III were at all relevant times duly appointed and acting within their capacity as Police Officers of the City of New York Police Department.

8. Defendants PO Theos, PO John Doe I, PO John Doe II and PO John Doe III (the "individual defendants") were at all relevant times, on duty on or about January 15, 2019 and January 16, 2019.

9. Defendants PO Theos, PO John Doe I, PO John Doe II, PO and John Doe III were at all relevant times duly appointed and acting within their capacity as Police Officers of the New York City Police Department.

10. At all relevant times, the individual defendants were acting under the color of state law.

11. At all relevant times, the individual defendants were agents, servants and employees acting within the scope of their employment by defendant City of New York.

12. Plaintiff caused a Notice of Claim to be served upon defendant the City of New York within ninety days of the incident.

13. Annexed hereto as Exhibit A is a Notice of Claim served on defendants City of New York, P.O. Theos, PO John Doe I, PO John Doe II, and PO John Doe III on February 25, 2019.

14. The claim was assigned Claim Number 2019PI005282 by the Comptroller's office.

15. The Notice of Claim were delivered to the person designated by law as a person to whom such claims may be served.

16. The Notice of Claim were in writing, sworn to by the plaintiff's attorney, and contained the name and post office address of the plaintiff and plaintiff's attorney, the nature of the claim, the time when, the

place where and manner by which the claim arose and the damage and injuries claimed to have been sustained.

17. Defendant, the City of New York, has neglected and refused to make an adjustment in payment thereof within more than 30 days after service of the Notice of Claim. Thirty days have elapsed since such service of the notices of claim and payment thereof has been rejected or refused.

18. This is a civil rights action in which the Plaintiff Asher Newton Empty seeks relief for the defendants' violation of his rights secured by the Civil Rights Act of 1866 and 1871, 42 U.S.C. §§1981 and 1983 and of the rights secured by the United States Constitution, Amendments Four and Fourteen and for the rights secured under the Constitution of the State of New York, Article I, Sections 11 and 12 and the common law of the State of New York.

19. Plaintiff seeks damages, both compensatory and punitive, affirmative and equitable relief, an award of attorneys' fees and costs and such other relief as this Court deems equitable and just.

### **FACTUAL ALLEGATIONS**

20. That on or about January 15, 2019, between 5:30 P.M. and 7:00 P.M., while the plaintiff was lawfully in his home located at 1651 Hammersley Avenue, Bronx, New York, PO Theos and PO John Doe I entered the claimant's home in response to a call from Mr. Empty's daughter.

21. That PO Theos and PO John Doe I entered the claimants living room and told Mr. Empty that his daughter called and made a complaint. The respondents told Mr. Empty to sit down and do not move. Mr. Empty was afraid for his health and safety and complied with the Respondents' demands. Mr. Empty did not believe that he had the right to leave his own living room. PO Theos and PO John Doe I were visibly armed with their service revolver and baton. On January 15, 2019, that the Plaintiff was detained for approximately 15 minutes, however he was not charged with a crime.

22. The New York City Police Department were negligent in the hiring and training and retention of its police officers who were involved in the within occurrence.

23. On or about January 16, 2019, at approximately 9:00 AM while Mr. Empty was lawfully and rightfully in the boiler room within the basement of his own home located at 1651 Hammersley Avenue, Bronx, New York, the claimant was caused to sustain injuries when he was assaulted, battered and forcibly searched, illegally detained at which time and place, police officers, and/or agents, servants and/or employees of City of New York and the New York City Police Department, without probable cause, justification or provocation, detained and assaulted and battered said claimant. The New York City Police Department was negligent in the hiring and training of its officers which were involved in the within occurrence. On January 16, 2019, that the Plaintiff was detained for approximately 3 hours, however he was not charged with a crime.

24. On January 16, 2019, while Mr. Asher was in his basement PO John Doe II entered the boiler room within the basement without Mr. Empty's knowledge or consent. PO John Doe II entered the boiler room basement and immediately grabbed Mr. Empty's telephone without Mr. Empty knowledge or consent. PO John Doe II told Mr. Empty to get up. Mr. Empty who suffered from a previous neck and back injury was slow to move. PO John Doe II then grabbed Mr. Empty by his neck and slammed him against the wall causing Mr. Empty's head to hit the electrical meter.

25. That PO John Doe II told Mr. Empty that "we can do this your way or my way" and then held Mr. Empty by the neck against the wall and demanded that Mr. Empty tell him where the "gun" is located, and he will only charge him with a "misdemeanor." PO John Doe II told Mr. Empty that if he PO John Doe II finds the gun then Mr. Empty would be charged with a "felony."

26. Defendants PO John Doe II then proceeded to search Mr. Empty's person and searched the boiler room without Mr. Empty's permission or consent.

27. Defendants PO John Doe II then brought Mr. Empty from the boiler room to the living area of the basement and told Mr. Empty to sit down. PO Theos, PO John Doe I, PO John Doe II, and PO John Doe III then proceeded to search Mr. Empty's home without his permission or consent. PO Theos

searched Mr. Empty's bedroom.

28. PO John Doe II held a folded piece of paper and told Mr. Empty to sign it. Mr. Empty signed the paper believing it was some form of search warrant. Mr. Empty then asked PO John Doe II for a copy of the warrant and PO John Doe II said "you just signed and gave me consent to search your home."

Mr. Empty then stated that he did not give consent to search his home.

29. After about 3 hours PO Theos told Mr. Empty that he found the gun and Mr. Empty must confess.

Mr. Empty ask PO Theos to show him the gun. However, P.O. Theos did not show Mr. Empty any gun and left the premises. Mr. Empty was not arrested or charged with the commission of any crime.

30. That as a result of the conduct of PO Theos, PO John Doe I, PO John Doe II, and PO John Doe III the defendants caused Mr. Empty to aggravate, accelerate, precipitate and/or enhanced pre-existing personal injuries to his neck and back; sustained mental anguish; deprivation of his liberty; great humiliation; embarrassment; scorn; disgrace in his community; illegally detained; forcibly searched; ridicule among his peers; mental and bodily distress; medical expenses; and legal expenses.

31. Defendants PO Theos, PO John Doe I, PO John Doe II, and PO John Doe III was on duty and working as a police officer employed by defendant City of New York police department at the time of the aforementioned assault and battery upon the plaintiff.

### **AS AND FOR A FIRST CAUSE OF ACTION**

#### **(42 U.S.C. § 1983 Unreasonable and Excessive Force)**

32. Plaintiff repeat and reallege each and every paragraph set forth above as if fully set forth herein.

33. The acts of defendants PO Theos, PO John Doe I, PO John Doe II, and PO John Doe III described above constituted an assault upon plaintiff in that defendants PO Theos, PO John Doe I, PO John Doe II, and PO John Doe III recklessly or intentionally attempted to injure plaintiff Asher Newton Empty or commit a battery upon him, and further that defendants PO Theos, PO John Doe I, PO John Doe II, and PO John Doe III acts represented a grievous affront to plaintiff Asher Empty.

34. Defendants PO Theos, PO John Doe I, PO John Doe II and PO John Doe III acts constituted a

battery upon plaintiff Asher Newton Empty in that the bodily contact described was intentional and grossly offensive in nature.

35. The actions of defendants PO Theos, PO John Doe I, PO John Doe II, and PO John Doe III were intentional, reckless, and unwarranted, and without any just cause or provocation, and defendants P.O. Theos, PO John Doe I, PO John Doe II, and PO John Doe III knew, or should have known, that their actions were without the consent of plaintiff Asher Newton Empty and, in fact, that defendants purposely enter into Mr. Empty's home without his consent and proceed to search him aggressively not being aware of Plaintiff's previous injuries.

36. As a result of the acts of defendants PO Theos, PO John Doe I, PO John Doe II, and PO John Doe III plaintiff Asher Newton Empty became, and remains, sick, sore, lame and disabled; suffered and still suffers great physical and mental pain; sustained severe emotional injuries resulting from defendants PO Theos, PO John Doe I, PO John Doe II, and PO John Doe III assault and battery; has suffered and will continue to suffer a loss of enjoyment of life; upon information and belief, may be caused to expend substantial sums of money for medical aid; and believes that his emotional injuries are permanent in nature.

37. The injuries sustained by plaintiff Asher Newton Empty were caused wholly and solely by reason of the conduct described, and plaintiff Asher Newton Empty did not contribute thereto.

38. As a result of defendants PO Theos, PO John Doe I, PO John Doe II, and PO John Doe III assault and battery upon plaintiff Asher Newton Empty has been damaged in a sum that exceeds the jurisdiction of all lower courts.

**AS AND FOR A SECOND CAUSE OF ACTION**  
**(42 U.S.C. § 1983 False Arrest and Imprisonment)**

39. Plaintiff repeat the allegations contained in paragraphs 1 through 38 of the complaint as if fully set forth herein.

40. While acting under color of law Defendants PO Theos, PO John Doe I, PO John Doe II, and PO John Doe III acted recklessly and/or intentionally falsely imprisoning Plaintiff, who was innocent of any wrongdoing, and preventing him from receiving prompt medical attention.

41. By their conduct, Defendants PO Theos, PO John Doe I, PO John Doe II, and PO John Doe III under color of state law, deprived Plaintiff of his right to be free from unreasonable seizure under the Fourth and Fourteenth Amendments to the United States Constitution.

### **AS AND FOR A THIRD CAUSE OF ACTION**

#### **(Negligent Infliction of Emotion Distress)**

42. Plaintiff repeat the allegations contained in paragraphs 1 through 41 of the complaint as if fully set forth herein.

43. In engaging in the conduct described, by assaulting and battering plaintiff Asher Newton Empty, defendants deprived plaintiff Asher Newton Empty of his civil rights pursuant to 42 USCA § 1983.

Further, as police officers employed by defendant City of New York, PO Theos, PO John Doe I, PO John Doe II, and PO John Doe III were acting under the color of New York State law.

44. The aforementioned misuse of authority and power by defendants PO Theos, PO John Doe I, PO John Doe II, and PO John Doe III was egregious and shocking to the conscience. As a direct result, plaintiff Asher Newton Empty was caused to undergo the humiliation and indignities resulting from being falsely arrested and detained as described herein; and was caused and will continue to undergo and endure severe mental anguish, humiliation and economic hardship as a consequence thereof.

45. Such deprivations were in violation of the rights secured to plaintiff Asher Newton Empty by the Fourth and Fourteenth Amendments of the United States Constitution and by 42 USCA §1983.

46. As a result of defendants PO Theos, PO John Doe I, PO John Doe II, and PO John Doe III deprivation of plaintiff Asher Empty's civil rights, plaintiff Asher Empty has been damaged in an amount that exceeds the jurisdiction of all lower courts.



47. Defendants PO Theos, PO John Doe I, PO John Doe II, and PO John Doe III acts represented extreme and outrageous conduct which intentionally or recklessly caused severe emotional distress to plaintiff Asher Newton Empty. Further, the conduct described was so outrageous and atrocious as to be utterly intolerable in a civilized community.

48. As a result of defendant's PO Theos, PO John Doe I, PO John Doe II, and PO John Doe III negligent infliction of emotional distress upon plaintiff Asher Newton Empty, plaintiff has been injured in the sum that exceeds the jurisdiction of all lower courts.

49. Plaintiff demand costs and attorney's fees pursuant to 42 USCA § 1988.

**AS AND FOR A FOURTH CAUSE OF ACTION**

**(Intentional Infliction of Emotion Distress)**

50. Plaintiff repeat the allegations contained in paragraphs 1 through 49 of the complaint as if fully set forth herein.

51. Upon information and belief, defendant City of New York, through its officers, employees or agents, was on notice of defendants PO Theos, PO John Doe I, PO John Doe II, and PO John Doe III propensity toward improper conduct and to misuse and abuse their power and authority as a police officer of the City of New York through other incidents involving defendants PO Theos, PO John Doe I, PO John Doe II, and PO John Doe III of which plaintiff is not currently aware.

52. Upon information and belief, defendant the City of New York took no action in response to complaints of the police officers misuse their power and authority.

53. Upon information and belief the Defendant City of New York intentionally, knowingly and/or with reckless indifference did disregard and/or failed to investigate the prior incidents involving defendants PO Theos, PO John Doe I, PO John Doe II, and PO John Doe III or, in the alternative, did investigate such incidents but failed to take such action as was necessary, and therefore acted recklessly and with gross indifference and callous disregard in failing to remedy the conduct of defendants PO Theos, PO John Doe I, PO John Doe II, and PO John Doe III.

54. As a result of defendant City of New York reckless indifference and gross negligence in disregarding and/or failing to properly investigate the prior incidents involving defendants PO Theos, PO John Doe I, PO John Doe II, and PO John Doe III was allowed to commit battery and deprive plaintiff Asher Newton Empty of his civil rights.

55. As a result of defendant City of New York reckless indifference and gross negligence in disregarding and/or failing to properly investigate the prior incidents involving defendants PO Theos, PO John Doe I, PO John Doe II, and PO John Doe III were allowed to commit a battery and deprive plaintiff Asher Newton Empty of his civil rights.

56. As a result of defendant City of New York reckless indifference, callous disregard and/or failure to properly investigate as described above, plaintiff Asher Newton Empty has been damaged in an amount that exceeds the jurisdiction of all lower courts.

57. Defendants PO Theos, PO John Doe I, PO John Doe II, and PO John Doe III acts represented extreme and outrageous conduct which intentionally or recklessly caused severe emotional distress to plaintiff Asher Newton Empty. Further, the conduct described was so outrageous and atrocious as to be utterly intolerable in a civilized community.

58. As a result of defendants PO Theos, PO John Doe I, PO John Doe II, and PO John Doe III intentional infliction of emotional distress upon plaintiff Asher Newton Empty, plaintiff has sustained severe emotional distress, pain and suffering and loss of enjoyment of life, and has been damaged in the sum of that exceeds the jurisdiction of all lower courts.

**AS AND FOR A FIFTH CAUSE OF ACTION**

**(Negligent Hiring, Training, Retention, Supervision and Entrustment)**

59. Plaintiff repeats the allegations contained in paragraphs 1 through 58 of the complaint as if fully set forth herein.

60. Defendant City of New York was negligent in its screening and hiring of defendants PO Theos, PO John Doe I, PO John Doe II, and PO John Doe III.

61. Upon information and belief, defendant the City of New York intentionally, knowingly or with deliberate indifference failed to properly train or supervise their police officers, thereby allowing defendant PO Theos, PO John Doe I, PO John Doe II, and PO John Doe III to engage in the improper conduct complained of.

62. Upon information and belief, defendant the City of New York intentionally, knowingly or with deliberate indifference failed to properly train or supervise their police officers, thereby allowing defendant PO Theos, PO John Doe I, PO John Doe II, and PO John Doe III to engage in the improper conduct complained of.

63. Upon information and belief, defendant the City of New York intentionally, knowingly or with deliberate indifference failed to properly train or supervise their police officers, thereby allowing defendant PO Theos, PO John Doe I, PO John Doe II, and PO John Doe III to engage in the improper conduct complained of.

64. Upon information and belief, defendant the City of New York intentionally, knowingly or with deliberate indifference failed to properly train or supervise their police officers, thereby allowing defendant PO Theos, PO John Doe I, PO John Doe II and PO John Doe III to engage in the improper conduct complained of.

65. Upon information and belief in allowing defendant PO Theos, PO John Doe I, PO John Doe II, and PO John Doe III to continue their employment as a City of New York Police Department Police Officer, subsequent to numerous prior incidents similar to the incident complained of, and after having been placed on notice, either actual or constructive, of such prior similar incidents, defendant the City of New York ratified defendants PO Theos, PO John Doe I, PO John Doe II, and PO John Doe III misuse and abuse of their power and authority as a police officers employed by defendant City of New York.

66. Upon information defendant City of New York failed to provide adequate training to defendants PO Theos, PO John Doe I, PO John Doe II, and PO John Doe III.

67. Upon information and belief, defendants PO Theos, PO John Doe I, PO John Doe II, and PO John Doe III to had numerous prior incidents similar to the incident complained of, and after having been placed on notice, either actual or constructive, of such prior similar incidents, defendant the City of New York failed to provide adequate supervision of defendants PO Theos, PO John Doe I, PO John Doe II, and PO John Doe III.

68. Upon information defendant City of New York was on actual or constructive notice of defendants PO Theos, PO John Doe I, PO John Doe II, and PO John Doe III propensity for excessive force and violence and intentionally and recklessly retained them as police officers with the City of New York Police Department.

69. Upon information defendant City of New York was on actual or constructive notice of defendant P.O. Theos, PO John Doe I, PO John Doe II, and PO John Doe III propensity for excessive force and violence and intentionally and recklessly entrusted PO Theos, PO John Doe I, PO John Doe II, and PO John Doe III with a weapon as a police officers with the City of New York Police Department.

**AS AND FOR AN SIXTH CAUSE OF ACTION**

**(Violation Fourth, Fifth, and Fourteenth Amendment)**

70. Plaintiff repeat the allegations contained in paragraphs 1 through 69 of the complaint as if fully set forth herein.

71. Upon information and belief, defendant the City of New York knew or should have known that the aforesaid failure to properly train or supervise and/or the aforesaid failure to adopt proper policies, procedures or standards, and/or the failure to properly investigate and reckless disregard or gross indifference would result in the deprivation of the rights secured to plaintiff Asher Newton Empty by the Fourth and Fourteenth Amendments to the United States Constitution and by virtue of 42 USCA §1983.

72. As a result of defendant City of New York's failure to take remedial action concerning prior abuses of police authority by defendants PO Theos, PO John Doe I, PO John Doe II, PO John Doe III and/or defendant the City of New York's failure to properly investigate prior similar incidents, and/or the

reckless disregard or gross indifference by defendant the City of New York, the City of New York had a policy, practice or custom which encouraged or permitted its police officers to engage in such conduct. Defendant the City of New York intentionally, knowingly, maliciously and/or recklessly permitted and/or allowed the continuation of such a policy, practice or custom.

73. Upon information and belief, as a direct and proximate result of such policies, practice or customs, defendant the City of New York intentionally, deliberately or with reckless indifference deprived plaintiff Asher Newton Empty of his constitutional and civil rights.

74. Plaintiff has suffered, presently suffers, and will suffer in the future severe and extreme emotional distress, loss of enjoyment of life, and damages associated with the deprivation of his constitutional and civil rights.

75. The aforesaid reckless indifference, callous disregard and/or gross neglect by defendant the City of New York represents egregious conduct that is shocking to the conscience.

76. As a direct and proximate result of defendant the City of New York's reckless indifference, callous disregard and/or gross neglect, plaintiff Asher Newton Empty was caused to undergo severe humiliation and gross indignities resulting from the battery complained of, and was caused and will continue to undergo and endure severe mental anguish, humiliation, economic hardship and loss of enjoyment of life as a consequence thereof, and has been damaged in a sum that exceeds the jurisdiction of all lower courts.

77. Such deprivations were in violation of the rights secured to plaintiff Asher Newton Empty by the Fourth and Fourteenth Amendments of the United States Constitution and by 42 USCA § 1983.

78. As a result of defendant's deprivation of plaintiff's civil rights, plaintiff has been damaged a sum that exceeds the jurisdiction of all lower courts.

79. Plaintiffs demand costs and attorney's fees pursuant to 42 USCA § 1988.

80. As a result of defendants PO Theos, PO John Doe I, PO John Doe II, and PO John Doe III violations

of Plaintiff's state and federal civil right by physical and negligent infliction of emotional distress upon plaintiff Asher Newton Empty, plaintiff Asher Newton Empty has been injured in a sum that exceeds the jurisdiction of all lower courts.

**WHEREFORE**, plaintiff request the following relief:

- (a) That this Court grant final judgment against defendants, jointly and severally, as and for plaintiff Asher Newton Empty in an amount that exceed the jurisdiction of all lower courts for compensatory damages and for punitive damages.
- (b) That this Court grant final judgment in favor of plaintiff for all costs and disbursements of this action together with reasonable attorney's fees pursuant to by 42 USCA § 1988.
- (c) That this Court grant such other and further relief as the Court deems just and proper.

Dated: Bronx, NY  
January 10, 2020

**INDIVIDUAL VERIFICATION**

STATE OF NEW YORK

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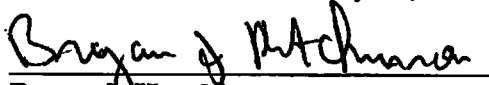
COUNTY OF BRONX

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ASHER NEWTON EMPTY, being duly sworn, deposes and says, that deponent is the **PLAINTIFF** in the within action; that deponent has read the foregoing **VERIFIED COMPLAINT** and knows the contents hereof; that the same is true to deponent's own knowledge, except as to the matters therein stated to be alleged upon information and belief, and that as to those matters deponent believes them to be true.

  
 ASHER NEWTON EMPTY  
 Plaintiff

Sworn to before me January 10, 2020

  
 Bryan J. Hutchinson  
 Notary Public State of New York  
 Reg. No. 02HU6047247  
 Qualified in Bronx County  
 Commission Expires Aug. 28, 2022

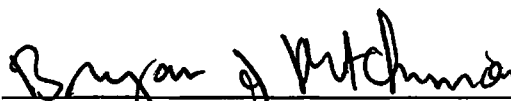
**ATTORNEY CERTIFICATION**

STATE OF NEW YORK)  
COUNTY OF BRONX )

The undersigned attorney does hereby certify:

I am an attorney duly admitted to practice law before the Courts of the State of New York and I do hereby provide this signed certification pursuant to 22 NYCRR Part 130-1.1(c) with regard to the following documents served, filed and submitted herewith in this **Complaint**.

Dated: Bronx, New York  
January 10, 2020



Bryan J. Hutchinson, Esq.  
**Law Office of Bryan J. Hutchinson, PLLC**  
**Attorney for Plaintiff**  
1443 E. Gun Hill Rd, Suite 2  
Bronx, New York 10469  
Tel: (718) 671-0900



**SUPREME COURT OF THE STATE OF NEW YORK  
COUNTY OF BRONX**

-----X INDEX NO.:

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**PLAINTIFF,**

**v.**

**CITY OF NEW YORK, PO THEOS,  
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IN THEIR INDIVIDUAL  
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**DEFENDANTS.**

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**SUMMONS AND VERIFIED COMPLAINT**

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By: Bryan J. Hutchinson  
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**To Defendants:**

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New York, New York 10007